

CHICKASAW TRIBAL LEGISLATURE

PASSED

Permanent Resolution Number 92-06

Amendments to T.L. 6-003 (Also Known As Enactment No. 34), The Chickasaw Nation Public Gaming Act

WHEREAS, the Chickasaw Tribal Legislature is responsible for making decisions pertaining to the acquisition, leasing, disposition and management of tribal property subject to federal law and for enacting rules and regulations pertaining to the Chickasaw Nation, and

WHEREAS, Governor Bill Anoatubby, chief executive officer of the tribe, or his designee, is authorized to enter into, negotiate, modify, amend and sign grants, contracts and other agreements on behalf of the Chickasaw Nation, and

WHEREAS, the Chickasaw Tribal Legislature adopted Tribal Law 6-003 (also known as Enactment Number 34), the Chickasaw Nation Public Gaming Act, on April 21, 1989, and the Act was signed into law on April 24, 1989, and

WHEREAS, certain revisions to that Act have been found to be desirable for the Chickasaw Nation in its efforts at exercising certain controls over the gaming industry within its jurisdiction,

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby adopts the following amendments to Tribal Law 6-003 (also known as Enactment Number 34), the Chickasaw Nation Public Gaming Act:

1. In Section 3, at paragraph (4), strike the following wording: ~~to a person, group, community, firm or corporation~~, and insert the following wording: It shall be unlawful for any other person, corporation, firm or other entity, except the Chickasaw Nation, to perform, conduct, operate, maintain or supervise gaming or series of gaming events within the external boundaries of the tribe, so that the paragraph now reads: *"License" means the permission by authority of the Chickasaw Nation to do an act, which without permission could be illegal. A permit granted by the commissioner for a consideration, to pursue gaming regulation under the jurisdiction of the Chickasaw Nation. It shall be unlawful for any other person, corporation, firm or other entity, except the Chickasaw Nation, to perform, conduct, operate, maintain or supervise gaming or series of gaming events within the external boundaries of the tribe.*

2. In Title I., Section 101, strike the following word: ~~game with~~, and insert the following wording: engage in the playing of games or to attend, visit or work, whether remunerated or not remunerated, at any gaming center operated by, so that the section now reads: *It shall be a violation of the laws of the Chickasaw Nation to violate the provisions of this code, or any regulations promulgated by the commissioner. Any person or licensee so violating shall have their right to engage in the playing of games or to attend, visit or work, whether remunerated or not remunerated, at any gaming center operated by the Chickasaw Nation or have their license to game suspended for a period not to exceed one hundred eighty (180) days or other criminal penalties that may be provided by ordinance. Further, the conduct of gaming operations without a license from the Chickasaw Nation shall subject any such gaming to the control, taxes and/or supervision of the State of Oklahoma.*

3. In Title III, Section 301, strike the following word: ~~person~~, and insert the following words: tribal

business or enterprise of the Chickasaw Nation, so that the section now reads: *Any tribal business or enterprise of the Chickasaw Nation conducting public gaming operations on property within the Chickasaw Nation and which is subject to the jurisdiction of the Chickasaw Nation shall be required to have and display*
PR 92-06, Continued

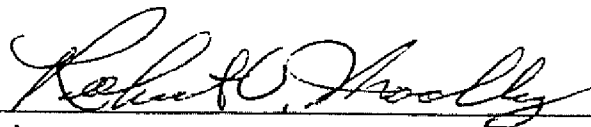
prominently an appropriate, valid and current Public Gaming license issued pursuant to the provisions of this Code. Any other forms of Public Gaming operations being conducted within the jurisdiction of the Chickasaw Nation without the lawful written approval of the Chickasaw Gaming Commissioner are prohibited.

4. In Title III, Section 304, delete the words: ~~All persons or organizations~~, and insert the following wording: All tribal entities, so that the section now reads: *All tribal entities who may seek to engage in Public Gaming activities within the Chickasaw Nation, must apply for the same at least thirty (30) days prior to the scheduled activities. All other licenses must be applied for no less than sixty (60) days prior to the scheduled activities.*

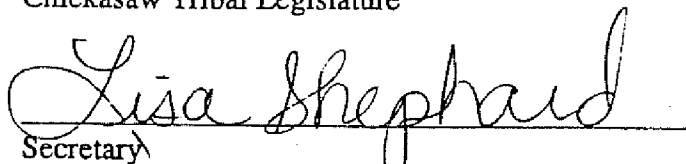
5. In Title III, Section 309, delete the words: ~~person(s) or organization(s)~~, and insert the following wording: tribal entity, so that the section now reads: *The license issued pursuant to the provisions of this Code is valid only for the tribal entity at the place of business shown on the face thereof. It is not assignable or otherwise transferrable to any other person or organization or for any other location without the written approval of the Commissioner.*

6. In Title III, Section 311, delete the words: ~~persons~~, and ~~person or persons~~, and insert the following wording: tribal entities, so that the section now reads: *The Public Gaming operations license is a revocable privilege, and no holder thereof shall be deemed to have a part in any vested rights therein or thereunder. The burden of proving qualifications to hold any license rests at all times in the licensee. The Commissioner is charged by law with the duty of continually observing the conduct of all licensees to the end that licenses shall not be held by unqualified or disqualified or unsuitable tribal entities whose operations are conducted in an unsuitable manner.*

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 17, 1992, by a vote of 12 ayes, 0 nays, and 1 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: APR. 18 1992